

		contentions, deductions, or conclusions of fact or law”]; see also Compl. ¶ 52 [legal conclusion]; <i>id.</i> ¶¶ 12-15, 28-29 [discussing repairs at unidentified repair facility(ies)].) Defendant shall give notice.
2	Dominguez vs. Ted Jones Ford, Inc. 2023-01306689	Motion for Attorney Fees Plaintiff Kelvin Dominquez’s Motion for Attorney Fees is GRANTED in part. <u>Prevailing Party:</u> Attorney’s fees are authorized by contract, statute, or law. (See C.C.P. section 1033.5(a)(10)(A),(B) & (C).) The Song-Beverly Act, popularly known as the automobile “lemon law,” authorizes fees “reasonably incurred by the buyer”. Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Plaintiff accepted Defendant Ford’s Offer to Plaintiff to Compromise pursuant to Code of Civil Procedure section 998. (Kirnos Decl. ¶ 33, Ex. C) Pursuant to the 998 offer Ford agreed that Plaintiff was the prevailing party and entitled to attorneys’ fees, costs, and expenses pursuant to the Song-Beverly Act. (<i>Ibid.</i>) Therefore, Plaintiff is the prevailing party entitled to attorney fees. <u>Amount of Attorneys’ Fees:</u> “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (<i>Ibid.</i> (citation omitted).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time

	expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. In the case of contingency fee arrangements, a prevailing buyer ... is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorneys. [¶] Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were ... reasonably necessary to the conduct of the litigation, and were reasonable in amount.’ (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247 (cleaned up).) Plaintiff Kelvin Rodriguez seeks attorney fees, costs, and expenses in the total amount of \$21,478.13, consisting of (1) \$14,982 in unadorned attorney fees; (2) a 1.2 multiplier resulting in an additional \$3,494.53; and (3) \$ 3,495.53 in costs and expenses. Ford contends the rates are excessive and not consistent with prevailing community rates. The court does not find the hourly rates to be excessive, but the 10 timekeepers on the case is unreasonable for a simple lemon law case. In Song-Beverly cases, a court can “reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (<i>Morris v. Hyundai Motor Am.</i> (2019) 41 Cal.App.5th 24, 39-40.) Factors a court may consider in its reductions include “the rates based on its finding that the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower billing attorneys; and that all the attorneys were doing work that could have been done by paralegals.” (<i>Ibid.</i>) Based on these considerations, the court cut six attorneys’ hours entirely for necessary tasks. The court stated it could have made an across-the-board reduction of 30 percent to accomplish the same purpose as reducing the total award to a reasonable amount that would have been billed had there been an appropriate number of attorneys on the case. (<i>Ibid.</i>)
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	The court will apply an across the board 10% reduction of Plaintiff's counsels' total time instead of cutting the attorney's hourly rates. <u>Number of Hours Billed</u> Ford challenges the total number of billable hours claimed by Plaintiff's attorneys for specific tasks. The complaint included one cause of action for negligent repair against defendant Keny Grody. Plaintiff is only entitled to fees on causes of action relating to their Song-Beverly Act claims. While in certain cases it may be difficult to apportion the work performed to specific claims, in this case, the entries flagged by Ford are easily separated from the remaining claims. Ken Grody Ford (Grody) filed a demurrer to challenge the third cause of action for negligent repair (ROA 26). On March 28, 2023, Plaintiff's counsel billed to exchange email correspondence with Defendant regarding meet and confer efforts on Grody's demurrer to the negligent repair cause of action. (Kirnos Decl., Ex. A.) On July 28, 2023, Plaintiff also billed to review Grody's demurrer and draft an opposition. On August 16, 2023, and August 17, 2023, Plaintiff billed to review the tentative ruling as well as to prepare for, attend, and draft results of the hearing on this same demurrer. (Kirnos Decl., Ex. A.) The total amount of hours billed was 1.5 hours or \$562.50 relating only to Plaintiff's negligent repair cause of action. This billing should be excluded entirely, as work does not pertain to Plaintiff's Song-Beverly claims. The court will reduce the attorney's fees request by \$562.50. As for other objections by Ford regarding the use of templates, excessive hours for the instant motion, and the billing for clerical/administrative tasks, the court finds the billing to be reasonable. <u>Multiplier to the Lodestar:</u> "The Supreme Court has 'set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award." ' " (<i>Mikhaeilpoor</i>, supra, 48 Cal.App.5th at 248.) "The trial court is
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neither foreclosed from, nor required to, award a multiplier.” (*Mikhaeilpoor*, at p. 247.)

Plaintiffs seek a 1.35 multiplier on the attorney fees.

A multiplier to the lodestar is not warranted. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the availability of statutory fees for Song-Beverly cases significantly reduced the risk associated with working on contingency. (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1174-1175 [FEHA fees award].) Accordingly, the request for a multiplier is DENIED.

Plaintiff’s Motion is GRANTED in part. Plaintiff is awarded **\$12,977.55** in attorney’s fees. The court calculates this as follows: \$14,982 - \$562.50 = \$14,419.50 - a 10% overall deduction, or \$1,441.95, for a total of \$12,977.55.

Costs

In addition to attorney fees, Plaintiff seeks \$3,495.53 in costs.

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).” (CRC, Rule 3.1700(b)(1).) The parties may agree to extend the time to file a motion to strike or tax costs, but this agreement must be confirmed in writing. (CRC, Rule 3.1700(b)(3).) “After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.” (CRC, Rule 3.1700(b)(4).)

Plaintiff filed his Memorandum of Costs on February 23, 2026. Ford did not file a motion to strike or tax costs, and only filed an opposition to the attorney fee/cost motion on July 16, 2026. The opposition was filed more than 15 days after the filing of the Memorandum of Costs and there is no apparent written agreement to extend the time to file a motion to strike or tax costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 289 [“The ‘failure to file a motion to tax costs constitutes a waiver of the right to object.’”].) Therefore, by failing to file a timely motion to tax costs, Ford has waived its right to object.

		Accordingly, Plaintiff is also awarded \$3,495.53 in costs. Plaintiff to give notice.
3	Eltiste vs. City of Tustin 2026-01540573	Demurrer to Complaint Defendant City of Tustin's (City) Demurrer to the Complaint is OVERRULED. A complaint is subject to dismissal on demurrer under Code of Civil Procedure section 430.10 where the court has no jurisdiction of the subject of the cause of action alleged in a complaint. The City argues the court lacks subject matter jurisdiction over Plaintiff's claims as his alleged injuries were sustained while working as a volunteer for the City's Parks and Recreation Department. Such injuries are covered by the City's workers' compensation program, which are the exclusive remedy for injuries arising out of the course and scope of employment. (Lab. Code § 3602(a); Lab. Code § 3363.5(a).) The Complaint fails to allege Plaintiff was an employee or volunteer for the City's Parks and Recreation Department. The City makes such argument without any proof that such relationship existed. A demurrer can be used only to challenge defects that appear on the face of the pleadings under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) No extrinsic evidence can be considered. A demurrer based on workers' compensation exclusivity is only proper when the complaint itself affirmatively alleges facts indicating coverage. (<i>Arriaga v. Cnty. of Alameda</i> (1995) 9 Cal.4th 1055, 1060.) Where a complaint does not affirmatively allege facts indicating workers' compensation coverage on its face, the defendant cannot succeed on a demurrer based on the exclusive remedy defense. (<i>Gibbs v. Am. Airlines, Inc.</i>, (1999) 74 Cal.App.4th 1, 13.) Accordingly, the demurrer to the Complaint based on lack of subject matter jurisdiction is OVERRULED. Defendant to give notice.
4	Hill vs. Carillo	Motion to Strike Portions of Complaint